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Case Name: Sampath Putta v. Leslie Henry et al.

Case No.: 24CV452177

This is an action brought by self-represented plaintiff Sampath Ram Kumar Putta (Putta), arising from the alleged failure to disclose an existing lien on real property purchased by Putta located at 1268 McGuinness Avenue, San Jose, CA, 95127 (the Property). The original defendants were Chicago Title Company (CTC), Tiffany Dimond, Elina Lee, Michael Tran, and Leslie Henry.

Putta filed a small claims action against Lee (and attempted, but failed, to serve Henry in the same case) in 2023, based on a “lien undisclosed on the Property.” (Santa Clara County Superior Court, case no. 23SC090168 (the “Small Claims Matter”). The small claims court dismissed Henry and entered judgment in October 2023 in favor of Lee, after hearing testimony from Tran as a witness.

The original complaint in this case was filed in November 2024. A first amended complaint (FAC) was filed in February 2025, alleging three causes of action: (1) negligence (against CTC and Dimond); (2) fraudulent concealment (against all defendants); and (3) breach of fiduciary duty (against Tran and Lee).

CTC and Dimond filed a demurrer to the FAC’s first and second causes of action and a motion to strike portions of the FAC. Lee filed a separate demurrer to the second and third causes of action. And Tran filed a separate demurrer to the second and third causes of action. The court (Judge Chung) sustained CTC and Dimond’s demurrer with leave to amend. The court granted in part and denied in part their motion to strike. The court sustained Lee’s demurrer without leave to amend. The court overruled Tran’s demurrer to the second and third causes of action as alleged against him, noting that he failed to support his arguments with legal authority and relied almost entirely on extrinsic evidence. (See Sept. 2, 2025 order at pp. 17:7-18:15.)

The court takes judicial notice of the October 11, 2023 minute order and judgment from the small claims court and Judge Chung’s September 2, 2025 order on its own motion. (Evid. Code, § 452, subd. (d).)

The operative second amended complaint (SAC) was filed in September 2025. The SAC alleges five causes of action: (1) negligence (against CTC and Dimond); (2) negligent representation (against CTC and Dimond); (3) fraudulent concealment (against CTC and Dimond); (4) fraudulent concealment (against Tran); and (5) breach of fiduciary duty (against Tran). Putta later dismissed CTC and Dimond as defendants, leaving Tran as the only defendant.

At issue is self-represented Tran’s demurrer to the SAC’s fourth and fifth causes of action. This demurrer was filed in November 2025. Putta filed an opposition at the end of April 2026. After the opposition was filed, Tran filed an “amended” demurrer and request for judicial notice on May 8, 2026. Because parties have no ability to amend filed motions without leave of court, the court has not considered Tran’s amended papers.

LEGAL STANDARDS—DEMURRER

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) But a party may not demur on the same grounds that were previously overruled unless there has been a substantive change in the pleading. A repeat demurrer on grounds previously overruled is effectively a request by a party that the court reconsider an interim order:

We cannot prevent a party from communicating the view to a court that it should reconsider a prior ruling (though any such communication should never be ex parte). . . . But a party may not file a written motion to reconsider that has procedural significance if it does not satisfy the requirements of section 437c, subdivision (f)(2), or 1008. The court need not rule on any suggestion that it should reconsider a previous ruling and, without more, another party would not be expected to respond to such a suggestion. . . . Unless the requirements of section 437c, subdivision (f)(2), or 1008 are satisfied, any action to reconsider a prior interim order must formally begin with the court on its own motion.

(*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108, internal citations omitted.)

The court cannot consider extrinsic evidence when ruling on a demurrer. The court has therefore not considered any of the exhibits attached to Tran’s demurrer, or any arguments based on this extrinsic evidence. Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.)

DISCUSSION

Tran apparently failed to meet and confer before bringing this demurrer. Code of Civil Procedure section 430.41, subdivision (a) requires the parties to meet and confer “in person, by telephone, or by video conference” before the filing of a demurrer. The demurring party must file a declaration with the demurrer describing the meet and confer efforts. No declaration was filed. But because a failure to meet and confer is not a basis for overruling a demurrer, the court will consider Tran’s demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).) Tran’s request for judicial notice of a copy of the SAC is denied as unnecessary. (*Paul v. Patton* (2015) 235 Cal.App.4th 1088, 1091, fn.1 [denying as unnecessary a request for judicial notice of pleading under review on demurrer].)

Tran’s demurrer to the SAC’s fourth cause of action for fraudulent concealment and fifth cause of action for breach of fiduciary duty must be overruled because the same arguments were considered and rejected in the court’s decision on Tran’s demurrer to the FAC. The causes of action for fraudulent concealment and breach of fiduciary duty alleged against Tran in the SAC are the same as those alleged against Tran in the FAC; the only difference is a change in numbering of the causes of action. Tran’s demurrer to those causes of action in the FAC was overruled by Judge Chung. While not precisely stated, the basis for both of Tran’s demurrers is best understood as a failure to state sufficient facts. Tran’s arguments in support of this demurrer depend upon extrinsic evidence that cannot be considered at this stage in the proceedings.

To the extent Tran asserts new arguments for the first time in this demurrer to the SAC, those arguments are forfeited because the allegations against him are unchanged from those in the FAC. (Code Civ. Proc., § 430.41, subd. (b) [“A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer.”].)

CONCLUSION

Tran’s request for judicial notice is denied.

Tran’s demurrer to the SAC’s fourth and fifth causes of action is overruled.

Because the demurrer is overruled, Tran is ordered to file an answer to the SAC no later than July 1, 2026. (Code. Civ Proc., § 472a, subd. (d).)

The court will prepare the order.

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